

IN-SCHOOL DISCIPLINARY MEASURES

Teachers shall have the initial authority to remove students from class for disruptive behavior. Disruptive behavior is defined as a violation of school board policies or regulations governing student conduct that interrupts or obstructs the learning environment. This regulation does not preclude school personnel from removing disruptive students from school, class or activities under existing policies and regulations without prior written documentation.

A. Criteria for Removal of a Student From Class. Prior to the removal of a student from class, under this regulation, one of the following criteria must be met, in addition to the requirements for incident reports, set forth in Section B below:

1. The student's behavior is disruptive, as defined above, and staff have previously utilized and documented multi-tiered positive behavior intervention strategies and/or restorative language and/or measures to address appropriate behaviors;
2. The student's removal from the class is necessary to restore a learning environment free from interruptions and obstructions caused by the student's behavior;
or
3. The attempted teacher and/or administrative interventions have failed to end the student's disruptive behavior.

When one of the above criteria has been satisfied, a teacher's removal of a student from class under this regulation shall be deemed appropriate. The teacher and/or school administrators shall provide notice of the student's disruptive behavior to the student's parent(s)/guardian(s) and provide the student's parent(s)/guardian(s) with an opportunity to meet with school administrators in response to this action.

B. Requirements for Incident Reports. No removal under this regulation shall occur unless two (2) prior written incident reports have been filed with school administrators regarding classroom conduct in violation of Section A above.

1. The incident reports must include previously documented interventions and responses to assist in improving the student's behavior that incorporate communication among the student support team of the school administration, school counseling staff, and the parent/guardian.
2. Upon removal, the teacher shall file a "Student Discipline Referral Form"—and any other documentation to support the removal—including, but not limited to, the previous two incident reports, with school administrators.

IN-SCHOOL DISCIPLINARY MEASURES

C. Procedures for Notification of Student and Parents. A teacher shall provide copies of any incident report and Student Discipline Referral Form to the student and their parent(s)/guardian(s) and notify them of the opportunity to meet with the teacher and/or school administrators to discuss the behavior and possible consequences if the behavior continues. Notice to meet with the teacher and/or school administrators shall occur in a timely fashion. The teacher shall document, in writing, their attempts to request and encourage parent(s)/guardian(s) to meet with the teacher and/or school administrators. Notice and documentation shall be required for each incident report and student removal under Policy 8215.

D. Guidelines for Alternative Assignment and Instruction of Removed Students. The principal shall determine the appropriate placement of a removed student. The principal or designee has several options regarding the placement of a removed student, including:

1. Assigning the student to an alternative program within the school;
2. Assigning the student to another classroom within the school;
3. Sending the student to an administrator's office;
4. Assigning the student to study hall. If the principal or designee chooses this option, the teacher shall provide and evaluate appropriate makeup work for the student;
5. Suspending or recommending expulsion of the student. If the principal or designee chooses this option, alternative instruction and assignment, if any, shall be provided according to School Board policy (see, e.g., Policy 8140: Student Attendance Requirements and Procedures); or
6. Returning the student to class (see Section E, below).

E. Procedure for the Student's Return to Class. The principal or designee shall determine, after consultation with the teacher, the duration of a student's removal from class. The principal or designee shall notify the teacher of the decision to return the student to class. The following procedure shall apply if the teacher disagrees with the principal's decision to return a student to the class:

1. The teacher and principal shall discuss the teacher's objection to the student's return to class, the principal's reasoning for returning the student and determine if a change in the return date of the student to class is warranted.

IN-SCHOOL DISCIPLINARY MEASURES

Parent(s)/guardian(s) must be notified of a change in the return date of the student to class, as appropriate.

2. Once the decision has been made to return the student to class, the teacher and principal shall develop a plan to address future disruptive behavior.

F. Restorative Practices. Principals may collaborate with the Restorative Practices Specialist and Facilitator in the Office of Student Assistance Services, and other appropriately trained school-based designees, in providing students who are removed from classes the opportunity to participate in restorative practices, as appropriate, to support the student's behavioral improvement. Restorative conferencing is always a voluntary, confidential process that often involves a written agreement. Principals may use restorative practices in conjunction with, and as part of, other dispositions. LCPS Restorative Practices offer a continuum of services to promote a safe and inclusive environment for our students.

G. Procedures for Bus Transportation. Proper bus behavior is critical to the safe operations of school buses. If the student's conduct is dangerous or threatens the safety of others, then a more severe disciplinary response may be needed. Subject to, and notwithstanding, Policy 6210 (Student Transportation) and its accompanying Regulation and Policy 6220 (Student Safety and Discipline on Buses), the principal or designee shall implement the following progressive levels of bus discipline when a student is in transit to/from school on the bus or at a bus stop:

1. Level 1. Staff may use a reflection sheet, the assignment of a specific seat while on the bus, provide counseling/mediation or use PBIS for two or more students experiencing a conflict, call the student's parent/guardian, or hold a conference with the student and parent(s)/guardian(s).

2. Level 2. Staff may use a behavior chart, give an administrative warning, issue detention or lunch detention, or conduct an administrative conference with the student's parent(s)/guardian(s). These interventions may be used if Level 1 interventions do not work or if the severity of the behavior merits a more intensive response.

3. Level 3. An administrator may hold a conference with the student's parent(s)/guardian(s) and the student, assign detention, remove the student from the bus 1-to-3 school days, or require restitution. These interventions may be used if Level 2 interventions do not work or if the severity of the behavior merits a more intensive response.

4. Level 4. Removal from the bus for 3-to-10 school days. These interventions may be used if Level 3 interventions do not work or if the severity of the behavior merits a more intensive response.

IN-SCHOOL DISCIPLINARY MEASURES

5. Level 5. A student may be denied bus privileges if Level 4 interventions do not work or if the severity of the behavior merits a more intensive response. Principals may recommend to the Office of School Administration the loss of bus privileges for longer than 10 days, but not to exceed 45 days. The Office of School Administration will review and either confirm, modify, or deny the recommendation.

H. Other Provisions

1. The principal shall ensure that students removed from class under Policy 8215 continue to receive an education in accordance with School Board policies.

2. Application of this regulation to students with disabilities, students with Section 504 plans, or students who are English Learners shall be consistent with federal and state law and regulations, as well as School Board policy.

3. Teacher deficiencies in classroom management shall be addressed in teacher evaluations pursuant to Policy 7312.

4. This regulation does not limit or restrict the ability of LCPS employees to apply other policies, regulations, or laws for maintaining order and safety in the classroom or elsewhere on LCPS school property, where students are participating in or attending any school-sponsored activity—regardless of its location, including travel to and from an event—or where students are going to or returning from school—irrespective of the mode of transportation.

[Former Regulation 8-26]

Issued: 6/23/98

Revised: 2/13/18, 9/26/22

Current Revision: 4/28/23

Legal Ref: Code of Virginia § [22.1-276.2](#)

Cross Refs: Policy [8220](#), Suspension from School; Policy [8210](#), Introduction to Student Discipline; Policy [8140](#), Student Attendance Requirements and Procedures, and Policy [7312](#), Performance Management of Employees